

## Multiple Choice (10 marks)

1. Which statement below is the least likely to follow logically from Dworkin's notion of law as integrity?
  - (a) It is likely to generate more individual rights and greater liberty.
  - (b) It renders a community more genuine.
  - (c) It opens the door to authoritarianism.
  - (d) It improves the moral justification for the exercise of political power.
2. The U.S. Congress is empowered by the Commerce Clause and other provisions of the U.S. Constitution to enact \_\_\_\_\_ to regulate foreign and interstate commerce.
  - (a) ordinances
  - (b) federal statutes
  - (c) executive orders
  - (d) charters
3. What is the purpose of sovereign immunity?
  - (a) The purpose of immunity is to protect foreign Heads of State from embarrassment
  - (b) Immunity protects a State from being invaded by another
  - (c) Immunity shields States from being sued in the courts of other States
  - (d) The purpose of immunity is to offer impunity in respect of all crimes
4. Why does Dworkin support liberal egalitarianism?
  - (a) Because it attempts to give effect to personal choice over individual luck.
  - (b) Because liberty is more important than equality.
  - (c) Because a market economy is just.
  - (d) Because the state is the best arbiter of equality between individuals.
5. Is recognition of governments prevalent in contemporary international practice?
  - (a) Recognition of governments is very prevalent in contemporary practice
  - (b) Recognition of governments has largely been replaced by functional Recognition
  - (c) Government recognition is common in respect of rebel entities
  - (d) Only democratic governments are recognised in contemporary practice

## True / False (10 marks)

*Answer True or False*

6. True or False: Nozick's formula  $r \times H$  represents the effectiveness of rehabilitation multiplied by the hazard to the community.
7. True or False: Hume contends that natural law is primarily concerned with historical precedents rather than moral objectivity.
8. True or False: An 'armed attack' in the UN Charter allows for the invasion of any State regardless of the intensity of the armed force used.
9. True or False: The Badinter Commission required a commitment to human rights and democracy from the former Yugoslav republics.
10. True or False: The UN Human Rights Committee is a treaty-based mechanism that monitors compliance with the International Covenant on Civil and Political Rights.

## Long Form Response (20 marks)

*Answer each question with a clear and complete explanation.*

11. Discuss Durkheim's perspective on the function of punishment within society, particularly focusing on the role of vengeance and its implications for social cohesion and justice.
12. Discuss John Finnis's critique of Hume's conception of practical reason, focusing on how Finnis argues that human reason aids in determining a worthwhile life.

*End of Paper*